

-

File No.: EXP202404175

SANCTION PROCEDURE RESOLUTION

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On February 21, 2024, a complaint was filed with the Spanish Agency for Data Protection regarding a possible infringement attributable to DIBEA ESTETIC, S.L. with NIF B86104338 (hereinafter, DIBEA or the complained party) based on the following facts.

The company DIBEA ESTETIC CANARIAS, against my will and having conducted surveys on its website (now inoperative), and also by email, ignored my refusal to transfer my data to another clinic. After numerous attempts to contact them, I have been unable to do so.

Along with the written complaint, the following is provided:

- Email dated 12/01/2023 at 10:07 sent from the address ***EMAIL.2 with the following content:

We regret to inform you that the IDEAL MERIDIAN CENTER is closing its doors permanently.

In light of this situation, since for IDEAL CENTRAL SERVICES, our clients come first, we have reached an agreement for you to continue with your laser hair removal and aesthetic treatments under the same contracted conditions and at no extra cost; the treatments will be carried out with the same equipment and quality at the center ****EMPRESA.1* at ***DIRECCIÓN.1.

To this end, starting from December 5, we will send your responsible parties all your data and history so that you can continue with your treatments, unless you indicate otherwise in advance (...)

If you do not agree to receive the treatments and transfer your data to the collaborator ***EMPRESA.1, please click on the following link.

You can access the following landing page to send us your signed disagreement regarding the transfer of your personal data and history:

LINK <https://www.centrosideal.com/atención-al-cliente/meridiano>.

Thank you

- Response email from A.A.A. (***EMAIL.1) sent on 12/01/2023 at 12:47 stating the following:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

2/12

Good morning,

I have already signed the disagreement, I sent my ID, I want my full money back for breach of contract, stop sending me copy and paste, otherwise I will take it to court.

Best regards

No supporting documentation for this last point is provided.

- Screenshot of a conversation held between 12/23/2023 and 01/05/2024 with the phone number ***TELÉFONO.1 whose identifying logo is named ***EMPRESA.1 with the following content:

Good morning, I would like to know if the Ideal Clinic has passed my file

Hello! Could you please tell us your full name and ID?

A.A.A. ***NIF.1.

Good afternoon A.A.A., I am writing to you from ***EMPRESA.1. Sorry for the delay.

We confirm that we have your history and that we have new appointments for you (...). When possible, I would appreciate it if you could confirm whether those dates work for you.

Good afternoon, I do not want an appointment with you. I am claiming my money from Ideal through legal means. And I told you repeatedly my refusal to transfer my data because it goes against data protection.

I'm sorry A.A.A., we were not aware. I will cancel the appointments.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGGD), the complaint was forwarded to

DIBEA for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding of the complaint, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) via electronic notification, was not received by the complained party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on 03/30/2024, as stated in the certificate in the file.

Although the notification was duly carried out by electronic means, for informational purposes, a copy was sent by postal mail that was duly notified on 04/01/2024. In this notification, the complained party was reminded of its obligation to communicate electronically with the Administration, and was informed of the means of access to such notifications, reiterating that, henceforth, notifications would be made exclusively by electronic means.

No response has been received to this forwarding letter.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
3/12

THIRD: On May 21, 2024, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: According to the report obtained from the AXESOR tool, the respondent is a medium-sized company established in 2011, with a business volume of €15,448,235 in 2022. The report also indicates that the respondent is the parent company of the group to which Centros de Depilación Láser Ideal S.L. belongs.

FIFTH: On December 23, 2024, the director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 6.1 of the GDPR, classified under Article 83.5.a) of the GDPR.

SIXTH: The aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP, and after the period granted for the submission of allegations had elapsed, it was confirmed that no allegations had been received from the respondent. Article 64.2.f) of the LPACAP - a provision of which the respondent was informed in the initiation agreement - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts on which the accusation was based, the infringement of the GDPR attributed to the respondent, and the sanction that could be imposed. Therefore, considering that the respondent has not submitted allegations to the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case a proposal for resolution.

In view of all the actions taken by the Spanish Agency for Data Protection in this procedure, the following facts are considered proven,

PROVEN FACTS

FIRST: On December 1, 2023, at 10:07, the complainant received an email sent from the address ***EMAIL.2 with the following content:

We regret to inform you that the IDEAL MERIDIAN CENTER is closing its doors permanently. In light of this situation, since for CENTROS IDEAL SERVICIOS CENTRALES, our clients come first, we have reached an agreement so that you can continue with your laser hair removal and aesthetic treatments under the same contracted conditions and at no extra cost; the treatments will be carried out with the same equipment and quality, at the center ****EMPRESA.1* at ***DIRECCIÓN.1.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

4/12

To this end, starting from December 5, we will send all your data and history to your representatives so that you can continue with your treatments, unless you indicate otherwise in advance (...)

If you do not agree to receive the treatments and to transfer your data to the collaborator

***EMPRESA.1, please click on the following link.

You can access the following landing page to send us your signed disagreement regarding the transfer of your personal data and history:

LINK <https://www.centrosideal.com/atención-al-cliente/meridiano>.

Thank you

SECOND: The complainant, through the email address ***EMAIL.1, responded to the email mentioned in the previous section on December 1, 2023, at 12:47, stating the following:

Good morning,

I have already signed the disagreement, I sent you my ID, I want my full refund for breach of contract, stop sending me copy and paste, otherwise I will take it to court.

Best regards

THIRD: Between December 23, 2023, and January 5, 2024, the complainant exchanged messages with the phone number ***TELÉFONO.1 whose identifying logo is called ***EMPRESA.1 with the following content:

Good morning, I would like to know if the Ideal Clinic has passed my file

Hello! Could you please tell us your full name and ID?

A.A.A. ***NIF.1.

Good afternoon A.A.A., I am writing from ***EMPRESA.1. Sorry for the delay.

We confirm that we have your history and that we have new appointments for you (...). When possible, I would appreciate it if you could confirm whether those dates work for you.

Good afternoon, I do not want an appointment with you. I am claiming my money from Ideal through legal means. And I have told you repeatedly my refusal to transfer my data because it goes against data protection.

I'm sorry A.A.A., we were not aware. I will cancel the appointments.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

5/12

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

III

Preliminary Issues

In the present case, according to the provisions of Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, given that the respondent carries out, among other processes, the collection, storage, and transfer of personal data of individuals such as name and surname, ID number, email address, and personal information contained in the medical history of clients of the aesthetic services offered by the respondent.

DIBEА performs this activity in its capacity as the data controller, as it is the one who determines the purposes and means of such activity, pursuant to Article 4.7 of the GDPR.

IV

Unfulfilled Obligation. Lawfulness of Processing

The first paragraph of Article 6 of the GDPR establishes the following:

"1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is a party or for the implementation at the request of the data subject of pre-contractual measures;
- c) processing is necessary for compliance with a legal obligation to which the data controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in point f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions."

In this case, as can be inferred from the information contained in the file, the complainant was a client of DIBEА ESTETIC CANARIAS, a center belonging to the group whose owner is DIBEА ESTETIC, S.L., the respondent.

It should be noted, in addition to the information provided to the complainant regarding the closure of the center, which is recorded in the file, that this circumstance was made public through an informative note from the Ministry of Social Affairs, Consumer Affairs, and Agenda 2030, dated 02/08/2024, which informs about the rights that assist users of the Ideal laser hair removal centers (CENTROS IDEAL) and indicates the following:

This General Directorate of Consumer Affairs has been informed of the closure, in December 2023, of the Ideal Centers. According to the company's statement on its website

(<https://www.centrosideal.com/>), it is proceeding to "permanently close all the brand's own centers," having confirmed that a large number of the franchised centers operating under the same name are also closed. In light of the situation created, this General Directorate reminds affected users who are not receiving the service in accordance with the signed contract of the rights that assist them:

- a) Right to demand the continuation of the service provision or to terminate the contract signed with Centros Ideal in the event that there are treatments not performed or not even started.

Article 1,091 of the Civil Code imposes on the Ideal Centers the obligation to execute contracts in accordance with their terms, while Article 1,124 empowers users to terminate the contract with Centros Ideal in the event that the company has breached any of the essential obligations set forth therein.

Consequently, users of the treatments or services contracted and interrupted with the Ideal Centers may demand the continuation of their provision or, failing that, the termination of the contract and the reimbursement of the amounts paid and not received. In these cases, at the moment when the provision of the service has ceased or has not been initiated, in accordance with what was agreed or within the stipulated timeframes, the user may file a complaint with the Center itself or with the company DIBEА ESTETIC S.L., owner of the group, through any means that allows for the proof of its submission and the content of the complaint.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

7/12

(or at least, the failed attempt to file it): burofax, certified letter to the address of the Center, etc. (...)

- a) Right to request the medical history or any other personal information regarding the provision of the

service

In order to substantiate the situation of the service or treatment contracted that has ceased to be provided, users have the right to access all personal documentation that the centers have about them. In the event that the center where the services were being provided has closed, the user may direct the request for access to their personal information regarding the provision of the service or treatment to the registered office of the company:

DIBEA ESTETIC, S.L. C/ Julián Camarillo, 4. Building 37 C-4th Floor 28037 Madrid

To request access to this personal data, the form provided for this purpose by the Spanish Agency for Data Protection (AEPD) can be used:

<https://www.aepd.es/sites/default/files/2019-09/formulario-derecho-de-acceso.pdf>

In the event that the company does not provide this information, the user may file a complaint with the AEPD itself in order to assert these access rights, through the following link:

<https://sedeagpd.gob.es/sede-electronicaweb/vistas/infoSede/tramitesCiudadanoReclamaciones.js>
(...)

As reflected in the proven facts of this sanctioning procedure resolution, on 1/12/2023, DIBEA contacted the complainant to inform them of the closure of the center with which they had a contract for aesthetic service provision. It also informed them of the agreement reached with another entity to continue providing the contracted services and indicated the following:

To this end, starting from December 5, we will send all your data and history to your responsible parties so that you can continue with your treatments, unless you indicate otherwise beforehand (...)

If you do not agree to receive the treatments and transfer your data to the collaborator

***COMPANY.1, click on the following link.

You can access the following landing page to send us your signed disagreement regarding the transfer of your personal data and history:

LINK <https://www.centrosideal.com/atención-al-cliente/meridiano>.

Thank you

In response to this message, on the same day (and therefore, before the date of December 5 when they were informed that their data would be supplied to ***COMPANY.1), the complainant replied indicating that "I have already signed the disagreement, I sent my ID (...)"

With this response, it can be understood that the complainant, as they themselves state, used the expressly indicated route by the responding party to reject the transfer of the personal data included in the medical history opened in the responding party for the purpose of providing the contracted services.

This opposition to the processing consequently prevents the application of the provision contained in Article 21 of the LOPDGD, which states the following:

1. Unless proven otherwise, the processing of data, including its prior communication, that may arise from the development of any structural modification operation of companies or the contribution or transfer of business or branch of business activity, shall be presumed lawful, provided that the processing is necessary for the successful completion of the operation and guarantees, when appropriate, the continuity in the provision of services.

2. In the event that the operation does not conclude, the receiving entity must immediately proceed to delete the data, without the obligation of blocking provided for in this organic law being applicable. Therefore, the responding party has carried out a processing of the complainant's personal data, consisting of its transfer to a third party, without having a legal basis for it. Taking this circumstance into account, it must be concluded that the known facts constitute an infringement, attributable to the responding party, for violation of Article 6.1 of the GDPR.

V

Qualification of the infringement of Article 6.1 of the GDPR and qualification for the purposes of prescription

Article 83.5 of the GDPR classifies as an administrative infringement the violation of the following article, which will be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

"a) the basic principles for processing, including the conditions for consent in accordance with Articles 5, 6, 7, and 9;"

For its part, the LOPDGDD in its Article 71, Infringements, states that:

"Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the sole purposes of the prescription period, Article 72.1 of the LOPDGDD establishes the following:

"Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the infringements that are considered very serious and will prescribe in three years are those that imply

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

9/12

a substantial violation of the articles mentioned therein and, in particular, the following:

b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679."

VI

Sanction for violation of Article 6.1 of the GDPR

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

"1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the violations of this Regulation indicated in paragraphs 4, 9, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage suffered;

b) the intentionality or negligence in the infringement;

c) any measures taken by the controller or processor to mitigate the damage suffered by the data subjects;

d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;

e) any previous infringements committed by the controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;

i) when the measures indicated in Article 58, paragraph 2, have previously been ordered against the controller or processor in relation to the same matter, the compliance with such measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

10/12

For its part, Article 76 "Sanctions and corrective measures" of the LOPDGDD states:

"1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party."

In the present case, considering the seriousness of the possible infringement, especially taking into account the consequences that its commission provokes, the imposition of a fine is warranted.

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. To ensure these principles, the turnover of DIBE A, amounting to €15,448,235 in the year 2022, is considered as a preliminary factor.

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the proven facts in this resolution, it is considered appropriate to graduate the sanction to be imposed according to the following circumstances, as contemplated in the aforementioned provisions.

- The nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of affected parties and the level of damages suffered (Article 83.2, letter a), of the GDPR): in the case at hand, and despite the fact that the complainant expressed their disagreement with the transfer of their personal data on the same day they were informed of it—conditioned on it not being rejected—and with sufficient notice prior to the date on which said transfer was to be formalized, the party complained against ignored such rejection and, nonetheless, transferred the complainant's personal data.
- Intentionality/Negligence in the infringement (Article 83.2, letter b), of the GDPR): as stated in the file, the transfer of the complainant's personal data was carried out despite having the express opposition of the data subject.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

11/12

the data and, therefore, an intentional act by the responding party occurred.

•

The categories of personal data affected by the infringement (Article 83.2, letter g), of the GDPR): the information that was transferred to a third party without a legal basis for doing so contained, in addition to the contact details of the claimant, information included in their clinical history - for the purpose of providing the aesthetic services they had contracted - and their ID number, as evidenced by the fact that, according to the file, ***COMPANY.1 requested the claimant's ID for identification purposes, proof that they had it because it had been transferred to them by the responding party for the purpose of being able to verify it.

In light of the facts presented, it is considered appropriate to impose a sanction on the responding party for the violation of Article 6.1 of the GDPR as classified in Article 83.5.a) of the GDPR. The sanction to be imposed is an administrative fine in the amount of 7,000.00 euros.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the

graduation of sanctions whose existence has been established, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on DIBEA ESTETIC, S.L., with NIF B86104338, for an infringement of Article 6.1 of the GDPR, classified in Article 83.5.a) of the GDPR, a fine of 7,000 euros.

SECOND: TO NOTIFY this resolution to DIBEA ESTETIC, S.L.

THIRD: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right.

The sanctioned party is warned that they must pay the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No.

IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

12/12

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Litigation Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Litigation Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency does not have knowledge of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

938-101224

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to vacancy in the position of Presidency and Deputy Presidency

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es